

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

2026CUWT064676: JONATHAN GONZALEZ vs ELITE ROOTER FRESNO INC

08/26/2026 in Department 43

**Motion to Deem Facts Admitted the Truth of the Matters Specified in Plaintiff's Request
for Admission (Set One)**

The morning calendar in courtroom 43 will normally begin at 8:45. Please arrive for your hearing no later than 8:30 a.m. The door will be opened before the calendar is called.

The Court allows remote appearances by Zoom. Refer to the Courtroom 43 webpage for more information about remote appearances. For Zoom appearances, all counsel appearing by Zoom must register no later than 3:00 p.m. the court day before the hearing. If appearing by Zoom, log into the hearing no later than 8:30 a.m. The Court will transfer you to the meeting room when the calendar begins. Additional instructions can be found on the Court website. When you log in to Zoom, be sure that your name and the case name are used as your Zoom name.

With respect to the tentative ruling below, no notice of intent to appear is required. If you wish to submit on the tentative ruling you can fax notice to Judge Coats's secretary, Ms. Brantner at 805-477-8790, stating that you submit on the tentative. Or you may email Courtroom43@ventura.courts.ca.gov with all counsel copied on the email. Do not call in lieu of sending a fax or email. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence. If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motions:

- 1) Plaintiff's Motion to Deem Facts Admitted & request sanctions of \$2,700
- 2) Plaintiff's Motion to Compel responses to RFPs & request sanctions of \$2,700
- 3) Plaintiff's Motion to Compel responses to Form Rogs (general) & request sanctions of \$2,700
- 4) Plaintiff's Motion to Compel responses to Form Rogs (empl.) & request sanctions of \$2,700
- 5) Plaintiff's Motion to Compel responses to Special Rogs & request sanctions of \$2,700

Tentative Ruling: A motion to compel arbitration was filed on August 24, 2026, and is scheduled for hearing on October 9, 2026. As required by Code Civ. Pro. §1281.4, the Court stays the action until that date and pending the outcome of that motion. Accordingly, these motions to compel discovery and deem matters admitted are continued to October 9, 2026, at 8:30 a.m. in Courtroom 43.

Moving party is ordered to serve notice of the continuance.